

### **Calendar Line 3**

**Case Name:** *Estate of Marie Rosenblatt*

**Case No.:** 25PR199986

The above-entitled action came on for hearing before the Honorable Charles Adams on May 27, 2026, at 10:00 a.m. in Department 7. The matter having been submitted, the court finds and orders as follows:

#### **INTRODUCTION**

On April 14, 2025, attorney Marie Rosenblatt, Esq. (“Decedent”) passed away. Pursuant to a will drafted in 1976, the court issued letters of administration to Sister Susan Sanders, RSM following her successful petition for probate.

Currently before the court is a motion, by Charles J. Nagaele, Esq. (“Movant”), an attorney who worked with Decedent on the marital dissolution case, to be appointed “partial” practice administrator of the deceased attorney’s practice solely as to one specific IOLTA account containing the proceeds of a home sold in the marital dissolution case. The motion is unopposed. The motion previously came on for hearing and was continued to May 27, 2026 so that the court could receive further information from Movant. Movant has now filed a supplemental declaration.

#### **DISCUSSION**

Movant asserts that he was co-counsel with Decedent in *Martha Rogers v. Alvin Rogers*, 21FL003805, a marital dissolution case. During the pendency of the case, Decedent placed \$250,000, consisting of the proceeds of the sale of the marital home, into an IOLTA account. That case has now resulted in a judgment of dissolution and the proceeds are ready to be distributed pursuant to the judgment. Movant seeks to be named partial practice administrator over the IOLTA account.

Movant relies on Probate Code section 9674, which provides, in pertinent part, “The personal representative of the estate of a deceased attorney who was engaged in a practice of law at the time of his or her death or other person interested in the estate may bring a petition

for appointment of an active member of the State Bar of California to take control of the files and assets of the practice of the deceased member.” (Prob. Code, § 9764, subd. (a).)

In its prior order on this matter, the court explained

Probate Code section 9674, subdivision (a) provides that the personal representative should be making the request. Here, a personal representative, Sister Sanders had been appointed. It appears that Sister Sanders has been served with the motion and she filed no opposition. However, it is unclear whether Sister Sanders concurs in the motion. Additionally, Decedent’s sister, Carolyn Rosenblatt, has filed a petition to revoke probate of the 1976 will and to remove Sister Sanders as personal representative on the ground that a later estate plan exists. The petition seeks appointment of Carolyn Rosenblatt as personal representative. Again, it appears that Carolyn Rosenblatt has been served with the motion and she has filed no opposition but it is unclear whether she concurs in the relief requested in the motion.

The court may be able to overlook the fact that it is not the personal representative who made the motion but it is unclear whether an additional practice administrator will need to be appointed for the remainder of Decedent’s practice, if any. If one person were to be named practice administrator for the entire practice, it would appear that that individual should be in charge of the entire practice including the IOLTA account. Additionally, Probate Code section 9764, subdivision (f) provides that “[t]he court shall appoint the attorney nominated by the deceased member in a writing, including, but not limited to, the deceased member’s will, unless the court concludes that the appointment of the nominated person would be contrary to the best interests of the estate or would create a conflict of interest with any of the clients of the deceased member.” Accordingly, the court requests information regarding whether Decedent left written instructions regarding practice administration in the event of her death and whether appointment of an additional practice administrator is contemplated. This may require Movant to meet and confer with counsel for Sister Sanders and Carolyn Rosenblatt.

Finally, Movant seeks an order that his compensation is to be paid from the funds in the IOLTA account. But, the statute provides, “The practice administrator shall be compensated only upon order of the court making the appointment for his or her reasonable and necessary services. *The law practice shall be the source of the compensation for the practice administrator unless the assets are insufficient in which case, the compensation of the practice administrator shall be charged against the assets of the estate as a cost of administration.* The practice administrator shall also be entitled to reimbursement of his or her costs.” (Prob. Code, § 9764, subd. (g), italics added.) Movant had provided no authority indicating that the compensation may be paid from the IOLTA account itself and the funds contained therein would appear to belong to the clients. The court notes that Movant has provided declarations of the clients, Alvin Rogers and Martha Rogers concurring in the motion. But, the declarations do not address payment of Movant’s compensation from the IOLTA account. Accordingly, the court requests either

supplemental briefing regarding the authority for the request for compensation from the IOLTA account or evidence that the clients have been informed that the compensation will be paid from the IOLTA account and consent to same despite Probate Code section 9764, subdivision (g).

The court requested supplemental briefing or a supplemental declaration regarding the above issues.

Movant filed a supplemental declaration establishing that Sister Sanders and Carolyn Rosenblatt each have no objection to the appointment of Movant as partial practice administrator. (See Second Supplemental Declaration in Support of Motion [], ¶ 1, Ex. A.) Movant also declares that he will take no compensation for his services as partial practice administrator. (*Id.* at ¶ 3.) Accordingly, the court will GRANT the motion.

### **CONCLUSION**

The motion for appointment of a partial practice administrator is GRANTED. Charles J Naegele, Esq. is hereby appointed as Partial Practice Administrator only for the client funds held in trust for Alvin O. Rogers and Martha G. Rogers, California State Bar IOLTA account in JP Morgan Chase Bank, Account Number: 000000780579683 (and related non-IOLTA investment accounts) in the amount of \$250,000.00 plus interest, if any.

Charles J. Naegele, Esq. is authorized to take control of and manage the above-identified trust account(s), including the authority to:

a. Control and Management: Take exclusive control and management of only the client funds held in trust for Alvin O. Rogers and Martha G. Rogers, California State Bar IOLTA account in JP Morgan Chase Bank, Account Number: 000000780579683 (and related non-IOLTA investment accounts) attorney trust account(s);

b. File Access: Access all files, records, and documents relating to the trust account(s), including bank statements, investment reports, account registrations, and client disbursement records;

c. Client Notification and Court Ordered Distribution: Identify all clients whose funds are held in trust and provide timely notice of the appointment of the Practice Administrator and distribute those funds according to the existing Santa Clara County Superior Court Family Court Order.

- oo0oo -



**Calendar Line 4**

**Case Name:**

**Case No.:**

**- 00000 -**

**Calendar Line 5**

**Case Name:**

**Case No.:**

**- 00000 -**

**Calendar Line 6**

**Case Name:**

**Case No.:**

**- oo0oo -**

**Calendar Line 7**

**Case Name:**

**Case No.:**

**- oo0oo -**

**Calendar Line 8**

**Case Name:**

**Case Nos.:**

**- 00000 -**

**Calendar Line 9**

**Case Name:**

**Case No.:**

**- 00000 -**

**Calendar Line 10**

**Case Name:**

**Case No.:**

**- oo0oo -**

**Calendar Line 11**

**Case Name:**

**Case No.:**

**- oo0oo -**

**Calendar Line 12**

**Case Name:**

**Case No.:**

**- oo0oo -**

**Calendar Line 13**

**Case Names:**

**Case No.:**

**- oo0oo -**